

ELIZABETH II



1970 CHAPTER lxxv

An Act to empower the British Railways Board to construct a work; to extend the time for the compulsory purchase of certain lands and the completion of a certain work; to confer further powers on the Board; and for other purposes. [17th December 1970]

WHEREAS by the Transport Act 1962 the British Railways Board (hereinafter referred to as "the Board") were established: 1962 c. 46.

And whereas it is the duty of the Board under the Transport Act 1962 (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

And whereas it is expedient that the Board should be empowered to construct the work authorised by this Act and to use the lands referred to in this Act:

And whereas it is expedient that the period now limited for the compulsory acquisition of certain lands and the completion of a certain work should be extended as provided by this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas a plan and section showing the line or situation and level of the work to be constructed under the powers of this Act, and the lands authorised to be used by this Act, and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the county council of the county of Cambridgeshire and Isle of Ely, which plan, section and book of reference are respectively referred to in this Act as the deposited plan, the deposited section and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

- Short title. 1. This Act may be cited as the British Railways Act 1970.
- Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—
- 1845 c. 20. “ the Act of 1845 ” means the Railways Clauses Consolidation Act 1845;
- 1863 c. 92. “ the Act of 1863 ” means the Railways Clauses Act 1863;
- 1963 c. xviii. “ the Act of 1963 ” means the British Railways Act 1963;
- 1967 c. xxx. “ the Act of 1967 ” means the British Railways Act 1967;
- “ the Board ” means the British Railways Board;
- “ enactment ” means any enactment, whether public general or local and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ the level crossing ” means the level crossing authorised by section 4 (Power to construct level crossing) of this Act;

PART I
—cont.

“ the limits of deviation ” means the limits of deviation shown on the deposited plan;

“ the Secretary of State ” means the Secretary of State for the Environment;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

1878 c. 76.

“ the tribunal ” means the Lands Tribunal;

“ the works ” means the works authorised by Part II (Works and lands) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length.

3. The following enactments, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

Incorporation
of general
Acts.

Sections 16 and 47 of the Act of 1845 and sections 5, 6 and 7 and Part II (relating to extension of time) of the Act of 1863:

Provided that for the purposes of the provisions of the Act of 1845 and of the Act of 1863, as incorporated with this Act, the expression “ the company ” where used in the said incorporated provisions means the Board and the lines of railway authorised by section 4 (Power to construct level crossing) of this Act shall be deemed to be a railway authorised by the special Act.

PART II

WORKS AND LANDS

4.—(1) Subject to the provisions of this Act, the Board may, in the line and situation and upon the lands delineated on the deposited plan and described in the deposited book of reference and according to the level shown on the deposited section, make, use and maintain in the parish of Duxford in the rural district of South Cambridgeshire in the county of Cambridgeshire and Isle of Ely two lines of railway across and on the level of the road from Duxford to Hinxton at a point 160 yards south of the junction of that road with the private access road leading to premises belonging to Ciba (A.R.L.) Limited, with all necessary works and conveniences connected therewith.

Power to
construct
level crossing.

PART II
—cont.

(2) Notwithstanding anything in section 6 of the Act of 1863 or in section 47 of the Act of 1845, as incorporated with this Act, the Board shall not be required to erect or maintain a lodge at the level crossing and the gates at the level crossing shall be kept constantly closed across the railway instead of across the road except when engines or carriages passing along the railway shall have occasion to cross the road.

(3) For the purpose of constructing and maintaining the level crossing the Board may enter upon, break up and interfere with so much of the surface of the said road as is within the limits of deviation.

Power to deviate.

5. In the construction of the level crossing the Board may deviate laterally from the line or situation thereof shown on the deposited plan to any extent not exceeding the limits of deviation and may deviate vertically from the level shown on the deposited section to any extent not exceeding one foot upwards or downwards or to such further extent as may be found necessary or convenient and as may be sanctioned by the Secretary of State.

Stopping up of portions of roads.

6.—(1) Subject to the provisions of this Act, the Board may stop up and discontinue the portions of roads hereinafter mentioned—

In Greater London—

In the London borough of Bexley—

- (i) so much of the road known as Crabtree Manorway which is crossed by the railway between Belvedere and Erith stations at the level crossing known as Crabtree Manorway crossing as lies within the boundaries of their property;
- (ii) so much of the road known as Norman Road which is crossed by the railway at Belvedere station at the level crossing known as Norman Road crossing as lies within the boundaries of their property;
- (iii) so much of the road known as Pembroke Road which is crossed by the railway between Belvedere and Erith stations at the level crossing known as Pembroke Road crossing as lies within the boundaries of their property;
- (iv) so much of the road known as Slade Green Road which is crossed by the railway between Erith and Slade Green stations at the level crossing known as North End crossing as lies within the boundaries of their property;
- (v) so much of the road known as Whitehall Road which is crossed by the railway at Slade Green

station at the level crossing known as Whitehall Lane crossing as lies within the boundaries of their property.

PART II
—cont.

(2) The stopping up under this section of the portions of the roads known as Crabtree Manorway and Norman Road in the London borough of Bexley shall not take place until a new road bridge over the railway along the line of Picardy Manorway and pedestrian footbridges, at or near the sites of the level crossings carrying the railway over the said roads, have been constructed and opened for public use.

(3) The stopping up under this section of the portions of the roads known as Pembroke Road, Slade Green Road and Whitehall Road in the said borough shall not take place until pedestrian footbridges at or near the sites of the level crossings carrying the railway over the said roads have been constructed and opened for public use.

(4) Where in pursuance of the provisions of subsection (1) of this section a portion of road is stopped up and immediately before the passing of this Act there is under, in, upon, over, along or across such portion of road any telegraphic line belonging to or used by the Post Office, the Post Office shall have the same powers in respect of that line as if this Act had not been passed:

Provided that if the Board require that the telegraphic line shall be altered, paragraphs (1) to (8) of section 7 of the Telegraph Act 1878 shall apply to the alteration and accordingly shall have 1878 c. 76. effect, subject to any necessary modifications, as if references therein to undertakers included references to the Board.

7.—(1) In this section—

As to level
crossings at
Blaydon.

“the county council” means the county council of the administrative county of Durham;

“the diverted road” means any public road or side road connected therewith constructed by the county council in substitution for any part of the road (A.695) in the urban district of Blaydon-on-Tyne so as to cross the railways;

“the existing crossings” means the level crossings known as Chain Bridge Road crossing and Factory Road crossing in the said urban district whereby the railways cross Chain Bridge Road and Factory Road respectively;

“the railways” means the Board’s Newcastle and Carlisle railway and their Redheugh branch railway;

“traffic sign” has the meaning assigned to it by section 54 of the Road Traffic Regulation Act 1967.

1967 c. 76.

PART II
—cont.

(2) The county council and the Board may enter into and carry into effect agreements for the construction of level crossings in the said urban district for carrying the railways across the diverted road on the level.

(3) The railways may be carried with not more than four lines of rails across and on the level of the diverted road and the provisions of section 47 of the Act of 1845 and of sections 5, 6 and 7 of the Act of 1863 shall apply with respect to any level crossing constructed under the powers of this section:

Provided that the Board shall not be required to erect or maintain a lodge at either of the said level crossings and the gates thereat shall be kept constantly closed across the railways instead of across the road except when engines or carriages passing along the railways shall have occasion to cross the road.

(4) Upon the completion and opening for public use of the level crossings for carrying the railways on the level across the diverted road the Board may stop up and discontinue the existing crossings and thereupon all rights of way over and along the existing crossings shall be extinguished.

(5) The Board may, with the consent in writing of the Secretary of State (which consent the Secretary of State may amend or revoke) and subject to such conditions and requirements to be observed by the Board as shall, in the opinion of the Secretary of State, be necessary or desirable for the protection, safety and convenience of the public, provide at or near any level crossing constructed under the powers of this section and maintain and operate so long as such consent continues in force such barriers, lights, traffic signs and automatic or other devices and appliances as may be specified by the Secretary of State.

1839 c. 45.

(6) So long as any such consent as aforesaid continues in force, the provisions (in so far as they are inconsistent with any such consent) of the Highway (Railway Crossings) Act 1839, of section 47 of the Act of 1845 and of section 6 of the Act of 1863 shall cease to apply to the said level crossings.

1967 c. 76.

(7) Any traffic sign provided in pursuance of any such consent as aforesaid shall be deemed to be a traffic sign lawfully placed on or near a road in accordance with the provisions of the Road Traffic Regulation Act 1967:

Provided that nothing in this subsection shall impose on a highway authority any liability in respect of a traffic sign provided in pursuance of any such consent.

(8) The county council and the Board may enter into and carry into effect agreements with reference to the defraying or making of contributions towards the cost of constructing, maintaining,

operating and renewing any level crossing constructed under the powers of this section and with regard to any other matters relating thereto.

PART II
—cont.

(9) Any expenses incurred by the county council for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as a highway authority.

8.—(1) As from the passing of this Act, all rights of way over the level crossing referred to in Part I of Schedule 1 to this Act, other than a right for all persons to use the level crossing as a bridle way or on foot, shall be extinguished, and the Board shall provide and maintain on both sides of the railway at the said level crossing gates for the convenience of persons on horseback or leading horses and persons on foot. As to certain level crossings.

(2) As from the passing of this Act, all rights of way over the level crossings referred to in Part II of the said schedule, other than a right for all persons to use those level crossings on foot, shall be extinguished, and the Board shall provide and maintain on both sides of the railway at each of the said level crossings wicket gates or stiles for the convenience of persons on foot.

(3) The provisions of the Highway (Railway Crossings) Act 1839 c. 45. 1839, of section 9 of the Railway Regulation Act 1842, of section 47 1842 c. 55. of the Act of 1845 and of sections 5, 6 and 7 of the Act of 1863, and any other provisions to the same or similar effect incorporated with or contained in any enactment relating to any of the level crossings referred to in the said schedule shall cease to apply to those level crossings.

(4) As from the passing of this Act, each of the level crossings referred to in the said schedule (including the gates thereof, other than the gates provided in pursuance of subsections (1) and (2) of this section) shall be deemed to be works provided by the Board at the passing of this Act pursuant to section 68 of the Act of 1845 for the accommodation of the owners and occupiers of the lands adjoining the railway, and, for the purposes of this subsection, such owners and occupiers shall be deemed to include the owners and occupiers of any lands the use of which would have been interrupted if such level crossing had been closed at the passing of this Act.

(5) If any part of the road crossed by the railway at any of the level crossings referred to in the said schedule shall in consequence of the provisions of this section cease to be a road over which the public have a right of way for the passage of vehicles, the owners and occupiers of the lands abutting on such part shall be deemed to have such rights of passage thereover as shall be necessary to enable them to pass and repass to and from the said lands from and to such level crossing.

PART II
—cont.

(6) Any person who suffers loss by the extinguishment under this section of such private rights of way (if any) as may exist over the level crossings referred to in the said schedule shall be entitled to be paid by the Board compensation to be determined in case of dispute by the tribunal.

Incorporation
of provisions
of Acts of
1963 and
1967 relating
to works
and lands.

9. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 11 (Stopping up roads and footpaths without providing substitute);

Section 17 (Use of sewers, etc., for removing water);
and

Section 19 (Correction of errors in deposited plans and book of reference):

The Act of 1967—

Section 12 (Temporary stoppage of roads and footpaths); and

Section 16 (Grant of easements by persons under disability):

Provided that—

(i) the expression “river board” where used in the said section 17 of the Act of 1963, as so incorporated, shall mean a river authority established by an order under Part II of the Water Resources Act 1963 and the definition of “river board” in subsection (5) of the said section 17 shall be construed accordingly; and

(ii) in subsection (5) of the said section 12 of the Act of 1967, as so incorporated, for the references to the Postmaster General there shall be substituted references to the Post Office.

1963 c. 38.

PART III

PROTECTIVE PROVISIONS

Incorporation
of provisions
of Acts of
1963 and
1967.

10. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 33 (For protection of gas, water and electricity undertakers);

The Act of 1967—

Section 35 (Crown rights) (except paragraph (b) of subsection (1) and subsection (2) thereof);
and

Section 45 (For further protection of certain gas, water and electricity undertakers) (except subsection (2) thereof):

PART III
—cont.

Provided that in the said section 45 of the Act of 1967, as so incorporated—

- (a) for the reference in paragraph (3) thereof to section 12 (Temporary stoppage of roads and footpaths) of the Act of 1967 there shall be substituted a reference to section 12 (Temporary stoppage of roads and footpaths) of the Act of 1967, as incorporated with this Act; and
- (b) for the reference in paragraph (4) thereof to section 13 (Incorporation of provisions of Act of 1963 relating to works) of the Act of 1967 there shall be substituted a reference to section 9 (Incorporation of provisions of Acts of 1963 and 1967 relating to works and lands) of this Act.

PART IV

MISCELLANEOUS

11.—(1) In this section—

As to
Stowfield
Viaduct.

“the bridge” means the bridge of the Board known as Stowfield Viaduct, formerly carrying the railway between Ross-on-Wye and Monmouth over the river Wye, and situate partly in the parish of Welsh Bicknor in the rural district of Ross and Whitchurch in the county of Hereford and partly in the parish of Lydbrook in the rural district of West Dean in the county of Gloucester, and includes all works connected therewith belonging to or maintainable by the Board; and

“the councils” means the county councils of the administrative counties of Hereford and Gloucester.

(2) The Board and the councils may enter into and carry into effect agreements with respect to the maintenance of the bridge or any part thereof or for the transfer to and vesting in the councils of the bridge or any part thereof on such terms as may be agreed between the Board and the councils and any such agreement may provide for the transfer to the councils of all or any of the powers and obligations of the Board in respect of the bridge, or any part thereof, so transferred and vested as aforesaid, and on and from the date of such transfer the councils may hold and use the bridge or any part thereof so transferred for highway purposes.

(3) Any expenses incurred by the councils for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as highway authorities.

PART IV
—cont.

As to Old
Shoreham
Toll bridge.

12.—(1) In this section—

“the bridge” means the bridge of the Board known as Old Shoreham Toll bridge which carries the A.27 trunk road over the river Adur in the county of West Sussex and is situate partly in the parish of Lancing in the rural district of Worthing and partly in the urban district of Shoreham-by-Sea and includes all works connected therewith and the approach roads thereto belonging to or maintainable by the Board; and

“the council” means the county council of the administrative county of West Sussex.

(2) The Board and the council may enter into and carry into effect agreements with respect to the maintenance of the bridge or any part thereof or for the transfer to and vesting in the council of the bridge or any part thereof on such terms as may be agreed between the Board and the council and any such agreement may provide for the transfer to the council of all or any of the powers and obligations of the Board in respect of the bridge, or any part thereof, so transferred and vested as aforesaid, and on and from the date of such transfer the council may hold and use the bridge or any part thereof so transferred for highway purposes.

(3) Any expenses incurred by the council for the purposes of this section shall be deemed to be expenses incurred by them in the exercise of their powers as a highway authority.

Repeal of
section 30 of
Southern
Railway
Act 1927.

1927 c. xxiii.

As to
Yarmouth
tramways.

1880 c. cxcv.

13. Section 30 (For protection of Newport Corporation) of the Southern Railway Act 1927 is hereby repealed.

14. So much of the schedule to the Yarmouth Union Railway Act 1880 as requires—

- (a) engines to be fitted with a suitable fender to push aside obstructions;
- (b) a seat for the driver to be so placed in front of the engine as to command the fullest possible view of the road before him; and
- (c) that the machinery shall be concealed from view at all points above 4 inches from the level of the rails;

shall cease to have effect.

As to
footbridge
at Hatton.
1903 c. cxcvi.

15. So much of section 27 (Power to make new roads and alterations of roads footpaths &c.) of the Great Western Railway Act 1903 as relates to the parish of Shrewley Hamlet (now the parish of Shrewley) in the rural district of Warwick in the county of Warwick shall have effect as if the words “and may carry the same over the said Railway by means of a footbridge” were omitted therefrom.

16. After the passing of this Act the stock held in the name of the treasurer of the county council of the administrative county of Somerset in pursuance of the provisions of section XCVI (Company to invest a Sum of Money in the Funds before interfering with Rivers or Drains under Jurisdiction of Commissioners of Sewers) of the Act 6 William IV Cap. XXXVI (An Act for making a railway from Bristol to Exeter with branches to the towns of Bridgwater in the County of Somerset and Tiverton in the County of Devon) and section LIX (Company to invest 200*l.* in Three per cents; to be sold out and applied for Repair or Alteration of inefficient Works, or Repayment of Damage, in the crossing of Rivers or Drains) of the Somerset Central Railway Act 1852 as re-enacted by section IX (Notwithstanding repeal of recited Act Sections of recited Act in Schedule to remain in force) of and the Schedule to the Somerset Central Railway Act 1855 shall be sold and the proceeds of sale together with accrued interest shall be paid to the Board which shall thereafter indemnify the said county council against any expenses incurred by them which expenses would but for this provision have been paid out of the proceeds of sale of the said stock or part thereof.

PART IV
—cont.

As to
investments
held by
Somerset
county
council.

1852 c. lxiii.

1855 c. clxxxii.

17. A constable may without warrant arrest a person—

Enforcement
of byelaws.

- (a) if he has reasonable cause to believe that such person has contravened any byelaw for the time being in force and made by the Board for the safety and security of the railway, the preservation of good order or the comfort and convenience of persons upon the railway in pursuance of any power in that behalf, and he does not know and cannot ascertain the name and address of that person; or
- (b) if such person, in contravention of any such byelaw, fails or refuses to leave any premises, vehicle or ship, or any part thereof, after being requested by that or any other constable to do so.

18. Section 5 of the Regulation of Railways Act 1889, as amended by section 84 of the Transport Act 1962, in its application to any railway of the Board shall, as respects any offence under that section committed after the passing of this Act, have effect as if in subsection (1) thereof for the words “ten pounds” there were substituted the words “twenty pounds” and as if in subsection (3) thereof for the first reference to the words “twenty-five pounds” there were substituted the words “fifty pounds” and for the second reference to the words “twenty-five pounds” there were substituted the words “one hundred pounds”.

Amendment
of section 5
of Regulation
of Railways
Act 1889.
1889 c. 57.
1962 c. 46.

PART IV
—*cont.*
Extensions
of time.

1964 c. xvi.

Powers to
owners and
lessees to
give notice
as to
purchase of
land.

19.—(1) The period now limited by the Act of 1967 for the compulsory acquisition of the lands referred to in Part I of Schedule 2 to this Act is hereby extended until 31st December 1973.

(2) The period now limited by the British Railways Act 1964 for the completion of the work referred to in Part II of the said schedule is hereby extended until 31st December 1976.

(3) In this section and in the said schedule the word “lands” includes any easements or rights in, under or over land authorised to be acquired by the Act of 1967.

20.—(1) In this section—

“the enabling Act” means the Act of 1967;

“the land” means any land which is for the time being authorised to be acquired compulsorily by the enabling Act;

“lessee” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under subsection (2) of this section.

(2) If any owner or lessee of any of the land shall give notice in writing to the Board of his desire that his interest in any part of the land specified in the notice shall be acquired as soon as may be the Board shall within a period of three months after the receipt of such notice—

(a) enter into a contract with him for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or

(b) serve on him a notice to treat for the compulsory acquisition of his interest in the land specified in his notice, or in such part thereof as may be required by the Board; or

(c) serve on him notice in writing of the Board’s intention not to proceed with the purchase of his interest in the land specified in his notice.

(3) Where notice is given under the last foregoing subsection by an owner or lessee of land specified in the notice, then—

(a) if the Board—

(i) fail to comply with that subsection; or

(ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with paragraph (b) of that subsection; or

(iii) serve notice on him in compliance with paragraph (c) of that subsection;

the powers conferred by the enabling Act for the compulsory purchase of his interest in the land so specified shall cease;

- (b) if his interest in part only of the land so specified is acquired in pursuance of such a notice to treat the powers conferred by the enabling Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

PART IV
—cont.

21.—(1) Section 220 of the Town and Country Planning Act 1962 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session of the 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that Session; and accordingly the Town and Country Planning Acts 1962 to 1968 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

Saving for
Town and
Country
Planning
Acts.
1962 c. 38.

(2) In their application to development authorised by this Act, article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1963 (which permit development authorised by Private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to development begun within five years after the passing of this Act.

(3) In this section the reference to article 3 of and Class XII in Schedule 1 to the Town and Country Planning General Development Order 1963 includes a reference to corresponding provisions of any general order superseding that order made under section 14 of the Town and Country Planning Act 1962 or any corresponding provision of an Act repealing that section.

22. Where under this Act any difference is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

23. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

Costs of Act.

SCHEDULES

Section 8.

SCHEDULE 1

THE LEVEL CROSSINGS REFERRED TO IN SECTION 8 (AS TO CERTAIN LEVEL CROSSINGS) OF THIS ACT

PART I

In the county of Gloucester—

In the parish of Sapperton in the rural district of Cirencester—

The level crossing known as Frampton crossing whereby the road from Frampton Mansell to Oakridge is crossed by the railway between Kemble and Stroud stations.

PART II

In the county of Cambridgeshire and Isle of Ely—

In the parish of Sawston in the rural district of South Cambridgeshire—

The level crossing known as Dernford crossing whereby the road from the Cambridge Road (A.130) to Dernford Mill is crossed by the railway between Shelford and Whittlesford stations.

In the county of Devonshire—

In the parish of Stoke Canon in the rural district of St. Thomas—

The level crossing known as Sandy Lane crossing whereby the road from the road from Stoke Canon to Green Lane to the Stoke Canon Tiverton road (A.396) is crossed by the railway between Tiverton Junction and Exeter St. David's stations.

In the county of Salop—

In the parish of Wem Rural in the rural district of North Shropshire—

The level crossing known as Tilley crossing whereby the road from Tilley to Tilleygreen is crossed by the railway between Shrewsbury and Wem stations.

In the West Riding of the county of York—

In the parish of Allerton Mauleverer with Hopperton in the rural district of Nidderdale—

The level crossing known as Hopperton Gates crossing whereby the road from Hopperton Village to the A.1 (M) trunk road is crossed by the railway between Cattal and Goldsborough stations.

SCHEDULE 2

Section 19.

PART I

LANDS FOR WHICH THE PERIOD OF COMPULSORY ACQUISITION IS
EXTENDED BY THIS ACT TO 31ST DECEMBER 1973

The lands authorised to be acquired by section 14 (Power to acquire
lands) of the Act of 1967—

- (1) for the purposes of Works Nos. 1, 4, 5, 6, 7, 8 and 9 authorised
by Part II (Works) of the said Act;
- (2) numbered on the plans deposited in respect of the Bill for the
said Act—
 - (a) 21 and 22, 55 to 58 and 61 to 70 in the London
borough of Hounslow; and
 - (b) 7 to 12 in the London borough of Richmond upon
Thames.

PART II

WORK FOR WHICH THE PERIOD FOR COMPLETION IS EXTENDED BY THIS
ACT TO 31ST DECEMBER 1976

Work No. 5 authorised by section 5 (Power to make works) of the
British Transport Commission Act 1958.

1958 c. xliv.

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British Railways Act 1970

CHAPTER lxxv

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Schedule 1—The level crossings referred to in section 8 (As to certain level crossings) of this Act.

Schedule 2—

Part I—Lands for which the period of compulsory acquisition is extended by this Act to 31st December 1973.

Part II—Work for which the period for completion is extended by this Act to 31st December 1976.